WASTEWATER SYSTEM AND POTABLE WATER SUPPLY PERMIT

LAWS/REGULATIONS INVOLVED

10 V.S.A. Chapter 64, Potable Water Supply and Wastewater System Permit
Wastewater System and Potable Water Supply Rules, Effective September 29, 2007
Chapter 21, Water Supply Rules, Effective December 1, 2010

Landowner(s): **Moretown School District**
940 VT Route 100B
Moretown VT 05676

Permit Number: WW-5-0227-3
PIN: BR82-0002

This permit affects property identified as Town Tax Parcel ID # Moretown: 128192-02-020.000 referenced in a deed recorded in Book 28 Page(s) 92 of the Land Records in Moretown, Vermont.

This project, consisting of amending Permit WW-5-0227-1(note error in first page of permit referring to it as WW-5-0227-2) to reallocate water/wastewater flows from Lot #1, now being 4.4± acres, to the Town of Moretown for a new town office building subject to Permit WW-5-6840 located at 940 VT Route 100B in Moretown, Vermont, is hereby approved under the requirements of the regulations named above subject to the following conditions.

1. GENERAL

1.1 The project shall be completed as described in the application prepared by Peter Lazorchak. The project shall not deviate from the approved proposal without prior written approval from the Drinking Water and Groundwater Protection Division.

1.2 This permit does not relieve the landowner from obtaining all other approvals and permits PRIOR to construction including, but not limited to, those that may be required from other State departments and local officials.

1.3 The conditions of this permit shall run with the land and will be binding upon and enforceable against the landowner and all assigns and successors in interest. The landowner shall record and index this permit in the Moretown Land Records within thirty, (30) days of issuance of this permit and prior to the conveyance of any lot subject to the jurisdiction of this permit.

1.4 The landowner shall record and index all required installation certifications and other documents that are required to be filed under these Rules or under a specific permit condition in the Moretown Land Records and ensure that copies of all certifications are sent to the Secretary.

1.5 All conditions set forth in **WW-5-0227-1 dated 06/20/1996** shall remain in effect except as amended or modified herein.

1.6 Lot #1 is approved with the existing elementary school building. No alterations to the existing building other than those indicated in this permit that would change or affect the water supply or wastewater disposal shall be allowed without prior approval by the Drinking Water and Groundwater Protection Division. Construction of additional nonexempt buildings including commercial and residential buildings is not allowed without prior permitting by the Drinking Water and Groundwater Protection Division and such permit may not be granted unless the proposal conforms to the applicable laws and regulations.

1.7 Each purchaser of any portion of the project shall be shown a copy of the Wastewater System and Potable Water Supply Permit and the stamped plan(s), if applicable, prior to conveyance of any portion of the project to that purchaser.

1.8 By acceptance of this permit, the landowner agrees to allow representatives of the State of Vermont access to the property covered by the permit, at reasonable times, for the purpose of ascertaining compliance with the Vermont environmental and health statutes and regulations, and permit conditions.

1.9 Any person aggrieved by this permit may appeal to the Environmental Court within 30 days of the date of issuance of this permit in accordance with 10 V.S.A. Chapter 220 and the Vermont Rules of Environmental Court Proceedings.

2.WATER SUPPLY

2.1 All water supply conditions set forth in **WW-5-0227-1 dated 06/20/1996** shall remain in effect except as amended or modified herein.

2.2 Lot #1 is authorized for a reduction of **162 gallons** per day to the existing **public non-transient non-community** water supply system permitted under **VT0006677**, for a total of **5,238 gallons** per day.

2.3 Lot #1 is subject to an easement onto the lands identified as "Lands of the Town of Moretown". The ownership of this project, or portion thereof, shall not be transferred without water rights to the approved water supply. The water rights shall provide for an uninterrupted supply of water together with the right to enter upon the property for the construction, repair, maintenance and other such reasonable purposes as may arise regarding the potable water supply. No construction on or conveyance of the approved lot(s)/project is allowed until such time as a copy of the executed easement has been recorded in the Moretown land records. Failure to properly execute the easement renders this permit null and void for any lot/the project conveyed without the proper easement. It is recommended that a copy of the executed easement be sent to the Drinking Water and Groundwater Protection Division.

3.WASTEWATER DISPOSAL

3.1 All wastewater disposal conditions set forth in **WW-5-0227-1 dated 06/20/1996** shall remain in effect except as amended or modified herein.

3.2 The wastewater disposal system, which serves Lot #1 is located on lands identified as "Lands of the Town of Moretown". The land deeds that establish and transfer ownership of these parcels shall contain a legal easement which grants the purchaser(s) and any future owner(s) the right to enter upon the property for the construction, repair, maintenance and other such reasonable purposes as may arise regarding the wastewater disposal system. Failure to properly execute the easement renders this permit null and void for any lot/the project conveyed without the proper easement. It is recommended that a copy of the executed easement be sent to the Drinking Water and Groundwater Protection Division.

3.3 Lot #1 is approved for the reduction of **180 gallons** per day to the existing wastewater disposal system, with a maximum design flow of **2,820 gallons** per day. No changes shall be made to the existing wastewater system unless prior approval is obtained from the Drinking Water and Groundwater Protection Division. Should the system fail and not qualify for the minor repair or replacement exemption, the landowner shall engage a qualified Licensed Designer to evaluate the cause of the failure and to submit an application to Drinking Water and Groundwater Protection Division prior to correcting the failure.

David K. Mears, Commissioner
Department of Environmental Conservation

By Dated April 7, 2015
Dana Nagy, Assistant Regional Engineer
Barre Regional Office
Drinking Water and Groundwater Protection Division

cc Moretown Planning Commission
Peter Lazorchak